
To the Delegation of the European Union to the Republic of Serbia

Отправитель Dragon Design <1448884@gmail.com>

Дата 20.04.2026, Пн, 14:47

Получатель delegation-serbia@eeas.europa.eu <delegation-serbia@eeas.europa.eu>

To the Delegation of the European Union to the Republic of Serbia Justice, Freedom and Security Section / Rule of Law

Dear Representatives of the EU Delegation,

My name is Dmitrii Lagovskii, a legal professional by training, a citizen of the Russian Federation of Ukrainian ethnic origin. I am currently facing an imminent threat of forced extradition to Russia, which poses a direct danger to my life, liberty, and physical integrity.

I am reaching out to you because the Serbian judicial and administrative authorities have committed systemic violations of the European Convention on Human Rights (ECHR), directly affecting the benchmarks of Chapter 23 within the framework of Serbia's European integration process.

The Russian side has requested my extradition on charges of fraud (Art. 159, Part 4 of the Criminal Code of the RF). This accusation is not supported by a SINGLE piece of evidence—neither in the request materials nor during the court proceedings. The Moscow Arbitration Court, established the absence of any property damage in the same transaction—effectively refuting the corpus delicti of the criminal charge. These facts were ignored at all levels of the Serbian judicial proceedings.

As a reservist of the Russian Armed Forces, I left the country in 2023 specifically due to the threat of forced mobilization and participation in the war against Ukraine—which I categorically reject as a citizen of Ukrainian origin. In the event of extradition, I will face not a trial, but immediate mobilization and deployment to the front lines.

Article 13 — Right to an Effective Remedy (CENTRAL VIOLATION)

Without exception, all instances—the Asylum Office, the Asylum Commission, the Higher Court, the Appellate Court, and the Supreme Court—limited themselves to a purely formalistic review of the documents provided by the requesting party. Not a single one of my substantive arguments was examined on its merits. The courts accepted the accusation on faith without evidence, failing even to specify why the refuting arguments and the ruling of the Russian arbitration court were disregarded. The right to an effective remedy has been reduced to a procedural fiction.

Article 3 — Prohibition of Torture and Inhuman Treatment

The Russian Federation is a state where systematic torture and ill-treatment of detainees have been documented, including those prosecuted in cases related to evasion of mobilization. Reports from Amnesty International, Human Rights Watch, and the UN Human Rights Monitoring Mission document these facts as persistent systemic practices. The Serbian authorities failed to conduct any individual assessment of these risks regarding my situation—neither as a reservist nor as a person of Ukrainian origin who refuses to fight. This approach directly contradicts the absolute nature of the prohibition under Article 3 of the ECHR and the principle of non-refoulement.

Article 6 — Right to a Fair Trial (Flagrant Denial of Justice)

I am to be surrendered to the judicial system of a state where a "flagrant denial of justice" has been documented within the meaning of ECHR jurisprudence—particularly in cases with political or military dimensions. Furthermore, the Serbian courts ignored a final arbitration court ruling that refutes the very basis of the charge and provided no reasoning for rejecting this argument. This, in itself, constitutes a violation of Article 6 as applied to extradition proceedings.

Article 8 — Right to Respect for Private and Family Life

My family—my spouse and two minor children—resides in Belgrade on legal grounds. Extradition based on an unfounded accusation represents a disproportionate interference with our family life, lacking any proper justification.

The systematic refusal of Serbian authorities to verify the substantive merits of extradition requests—primarily those originating from states with documented rule of law violations—is a direct indicator of compliance with

Chapter 23 requirements. This case demonstrates that while formal criteria are met, real protection of human rights is absent.

I request the EU Delegation to:

Record this case as a documented example of a systemic failure;

Within its mandate, request information from the competent authorities of Serbia;

Take this case into account when assessing progress under Chapter 23.

Attached to this letter are the decisions of the Asylum Office, the Asylum Commission, and the Higher, Appellate, and Supreme Courts of Serbia.

Respectfully,

Dmitrii Lagovskii